

THE REPUBLIC OF UGANDA

THE REGISTRATION OF TITLES ACT- CAP 240

THE CONDOMINIUM PROPERTY ACT, CAP 234

AGREEMENT FOR SALE AND PURCHASE OF CONDOMINIUM UNIT NO. 8

In respect of

CONDOMINIUM PLAN NO. WKY.....
BLOCK PLOT KYADONDO, WAKISO

BETWEEN

.....&.....

The "Vendors"

AND

.....

The "Purchaser"

The Purchaser may, without incurring any liability for doing so, rescind this agreement within ten days after its execution by the parties to it, unless all documents required to be delivered to the purchaser under section 40 have been delivered to the purchaser not less than ten days before the execution of this agreement by the parties to it.

This Agreement is made this day of 2025.

BETWEEN

.....**and**of C/o P.O. BoxKampala, (hereinafter referred to as the “**Vendors**” which expression shall where the context so admits include the Vendor’s legal representative(s), successor(s) in title and assignees of the one part;

AND

..... of C/o P.O. Box _____ Kampala, and holder of NIN No. (hereinafter referred to as the “**Purchaser**” which expression shall where the context so admits include the Purchaser’s legal representatives, successors in title and assignees) of the second part.

The Vendor and Purchaser shall collectively be known herein as the “**Parties**”.

WHEREAS:

- (a)** The Vendors are the owners of a block of residential properties located at Plot Block Kyadondo, Wakiso, described in the Particulars as the registered proprietors under instrument no. WKY- (the “**Development**”) which consists of 8 apartment units each having a separate condominium title **as per the attached Condominium Plans (.....)**.
- (b)** The Vendors have offered to sale to the Purchaser a three-bedroom apartment (..... m²) on the 3rd Floor of the Development known as Condominium Unit No. 8 (the “**Condominium Unit**”).
- (c)** The Purchaser has agreed to purchase the Condominium Unit together with the easements and other rights and subject to:
 - i) the stipulations and conditions set out in the Developer’s Management Agreement to be executed between the Corporation (for the time being represented by the Developers/Vendors) and Purchaser hereafter, and which

Developer's Management Agreement is attached as **Schedule 2** hereto;

- ii) the proposed bylaws to made for the Corporation attached as **Schedule 3** hereto.
- iii) There is no Proposed Recreational Agreement on account of there being no recreational facilities in the Condominium Plan.
- iv) The Developer's Management Agreement, shall be executed contemporaneously upon execution of this agreement and govern the relationship between the Corporation (represented by the Developer's/ Vendors for the time being) and Purchaser in respect of the Condominium Unit and management thereof, and the Common Areas unless and until terminated or varied by the Corporation after the majority of the Units is sold by the Developer.
- v) The Developer shall convene a meeting of the Corporation upon (the Developer) selling the 5th Condominium Unit, in any event not later than three (3) weeks from such sale for the purpose of undertaking the provision of the Scheduled Services under the Management Agreement, and as set out in the bylaws of the Corporation.
- vi) The Purchaser enters into this Agreement for the purpose of, inter alia, purchasing the Condominium Unit, agreeing to be bound by the Management Agreement, and agreeing to become a Member of the Condominium Corporation.

NOW THEREFORE THIS AGREEMENT WITNESSETH as follows:

1. INTERPRETATION:

In this agreement, unless the context otherwise requires the words below shall carry the meanings ascribed to them.

- 1.1. "Corporation" shall mean the Conglomeration of all the Unit Holders on the under the Condominium Plan constituted under the Condominium Property Act, and hereunder for purposes of good management of the Condominium Units and Common Areas for the benefit of all the Unit Holders.
- 1.2. "Common Areas" shall mean: areas and components of the Condominium Units that are essential for the enjoyment of rights of other unit holders such as loading walls, shared walls, floors, roof, and other structural components; and that part of the condominium property which does not belong to any specific unit

and which is used in common by the owners of the units and includes, without prejudice to the general effect of the foregoing, the land on which the property is situated, support structures, infrastructure and services.

- 1.3. "Industry (Design) Standards" shall mean minimum acceptable building standards as set out in the Building Control Regulations, 2020 or as set by the Engineers Registration Board of Uganda at the time of construction of the Condominium Property the subject of this agreement.
- 1.4. Any undefined terms herein which are technical in nature shall carry the meanings ascribed to them by the Engineering Industry or as set out in the Condominium Property Act or any other relevant law prevailing in Uganda.

2. AGREEMENT FOR SALE AND PURCHASE

- 2.1. The Vendor hereby agrees to sale and the Purchaser hereby agrees to purchase the Condominium Unit for a sum of **UGX** (**Uganda Shillings** **Only**) (the "**Purchase Price**").
- 2.2. The Vendor shall upon execution of this Agreement pay the full Purchase Price and thereafter the Vendors shall handover of the Condominium Unit and title to the Purchaser.
- 2.3. The Purchase Price will be paid to the Vendors' designated account as advised by the Vendors in writing.

3. COVENANTS BY THE VENDORS

- 3.1. The Vendors are the lawful and legal owners of the Condominium Unit and there are no legal impediments whatsoever preventing the Vendors from selling and transferring the interest to the Purchaser.
- 3.2. The Vendors further covenant they shall convene a meeting of the Unit Holders to set up a Condominium Corporation as provided in paragraph (e) of the Recitals (WHEREAS) above to hand over management of the Condominium Units, Common Areas and other related matters including payment of a maintenance for the property at a fee to be computed after considering the unit cost of maintaining the common areas.

- 3.3. The Vendor covenants that the Condominium Unit and Common Areas have been built in strict compliance with the Approved Condominium Plans, availed upon execution hereof.
- 3.4. The Vendor further covenants that the Condominium Unit and Common Areas have all been built in accordance with acceptable Industry Design Standards and can withhold the Anticipated Loading and Intended Use. For the avoidance of doubt, the Vendor shall not be liable for any loss, injury or liability arising out of use by the Purchaser or other Unit Owners not consistent with Intended Use and Anticipated Loading.

4. COVENANTS BY THE PURCHASER

- 4.1. The Purchaser upon taking possession of the Condominium Unit, the Purchaser and the Purchaser's successors-in-title, or assignees will be bound by the Management Agreement and upon setting up of the Corporation, become and remain members of the "**Condominium Corporation**" which is established under the Condominium Act for purposes of managing the common property of the Condominium Unit owners.
- 4.2. The Purchaser acknowledges that the Condominium Corporation shall have rules that contain restrictions on the use of the Condominium Unit and that such restrictions are essential to the successful cooperation of the Condominium Unit owners.
- 4.3. The Purchaser agrees to pay a monthly maintenance fee set up under the Management Agreement, and later a fee to the Corporation to ensure that the property is kept in fit and good condition.
- 4.4. The Purchaser acknowledges that the Developer as Manager until the Corporation is set up, and (later) the Corporation is empowered to take whatever action it deems necessary to enforce payment of maintenance fees and to take legal proceedings against the Purchaser to enforce the rules.

5. TERMS AND CONDITIONS

- 5.1. **Transfer:** The Vendors shall execute all transfer documents and do all such further acts as may be necessary to implement the

intent of this Agreement. The Vendors will deliver to the Purchaser the following documents upon payment of the Purchase price;

- (A) The Condominium certificate of title for the Condominium Unit.
- (B) Duly signed transfer forms for purposes effecting the transfer.
- (C) Copies of any other documents to effect the transfer.
- (D) The Management Agreement.
- (E) Draft Corporation bylaws which shall be considered by the Corporation upon its being set up. Provided always that the Corporation may adopt, modify or set up entirely different bylaws as it deems fit.

5.2. **Possession:** The Vendor shall handover to the Purchaser vacant possession of the Condominium Unit at the time of final payment of the Purchase Price.

5.3. **Indemnity:** Either party hereto undertakes to indemnify and keep fully indemnified the other party ("**Indemnified Party**") for any loss, liability, or injury that the Indemnified Party may suffer as a result of breach of any of the terms hereof by such Party ("**Indemnifying Party**"). This liability shall extend to: any costs incurred in rectifying the breach caused by the Indemnifying Party, the cost of compensating any person affected by the breach, as well as reasonable lawyers' fees incurred in enforcing this right. Where the parties fail to agree on the extent of Indemnity or the reasonable costs, such dispute may be referred to adjudication in accordance with the terms hereof.

5.4. **Fees and Taxes:** The Parties shall independently meet their respective costs, fees and taxes arising from the transaction. The Purchaser shall pay stamp duty to effect transfer of title.

5.5. **Severability:** Each of the provisions of this Agreement is severable and distinct from others and, if at any time one or more of the provisions herein is or becomes invalid, illegal or unenforceable, the validity or legality and enforceability of all the remaining provisions shall not in any way be affected or impaired thereby.

5.6. **Applicable Law:** The law applicable to this agreement shall be the laws of the Republic of Uganda.

- 5.7. **Dispute Resolution:** All disputes which may arise between the Vendors and the Purchasers touching this Agreement shall be resolved by negotiation *inter parties*, and where the parties fail to resolve the dispute using any of the methods here-before, the aggrieved party upon extension of time for the dispute to be remedied may proceed before the courts of law of Uganda.
- 5.8. **Entire Agreement:** This Agreement constitutes the entire agreement and understanding between the Parties in respect of the sale and supersedes all previous agreements, understandings and undertakings, if any in respect thereof and all obligations implied by law to the extent that they conflict with the express provisions of this Agreement and the provisions of this Agreement may not be altered except by written agreement between the Parties.

IN WITNESS WHEREOF this Agreement has been duly executed by the parties hereto on the day and year first before written.

SIGNED by the said:

..... **(VENDOR)**

Name in own handwriting

Signature

..... **(VENDOR)**

Name in own handwriting

Signature

In the presence of (WITNESS):

Name in own handwriting

Signature

SIGNED by the said

..... **(PURCHASER)**

Name in own handwriting

Signature

In the presence of (WITNESS)

Name in own handwriting

Signature

SCHEDULE 1:

Condominium Plans

FOR LDC TEACHING PURPOSES ONLY

SCHEDULE 2:

Developer's Management Agreement.

FOR LDC TEACHING PURPOSES ONLY

SCHEDULE 3:

Proposed Corporation By-laws.

FOR LDC TEACHING PURPOSES ONLY